

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING
			14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)		
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER					
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ ARE ☐ ARE NOT ATTACHED					
28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED			29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED	

Solicitation/Contract Form Continuation

RUBB ROOF REPLACEMENT

This Solicitation is a
REQUIREMENT
for
MINI RUBB BUILDING ROOF REPLACEMENT

1. NOTICE TO ALL OFFERORS: The Government anticipates awarding a firm, fixed price service contract in accordance with FAR Part 12 in response to quotes received in response to this solicitation. A firm, fixed price contract places the maximum risk and full responsibility for all costs and resulting profit or loss on the contractor, offerors are advised to consider these risks when pricing their quotes.

2. See block 8 on page 1 of the solicitation for the closing date and time.

3. The deadline for submission of questions regarding the solicitation's terms, conditions, specifications, and/or performance work statement (PWS) is 3 days before solicitation due date to:

Name: Kristen Lorena
Email: kristen.g.lorena.civ@us.navy.mil

4. FOR COMPETITIVE REQUIREMENTS -

In accordance with FAR 12, the Government will select the most advantageous offer based on the following evaluation factors: technical including delivery date, price, and past performance in no order of relative importance

5. SINGLE AWARD FOR ALL ITEMS: Due to the interrelationship of supplies and/or services to be provided hereunder, the Government reserves the right to make a single award to the quoter whose quote is considered in the best interest of the government, price and other factors considered. Therefore, quoters who quote less than the entire effort specified herein may be determined to be unacceptable.

6. "EXCEPTIONS: All quoters MUST note all exceptions from the solicitation's terms, conditions, specifications, and performance work statement, if any. It will be assumed that any quote without mention of any exceptions will take no exception from all specifications, terms and conditions, clauses, or provisions within the solicitation."

7. Submission of invoices will be via Government Commercial Purchase Card (GCPC) in accordance with FAR 52.232-36.

8. Period of Performance: 1 week between date of award and 30 September 2026

9. A site visit will be scheduled for Tuesday, 7 April 2026 from 10:00am to 11:30am Pacific Time as follows:
POC Brian Devine, (904) 304-7162
NAVSUP FLCPS MHE
Bldg 954 Annex
Bremerton, WA 98314

10. Vendors interested in attending the site visit will require base access via the BAVR website and enter the information exactly as follows:

The Command you are visiting: "Bremerton NAVSUP FLCPS"
Company Name: NAVSUPFLCPS MHE SHOP

Work Phone: (904) 304-7162 Bldg #: 954 Annex (RUBB Building)

Originating Command Security Officer:

Last: Hixson

First: William

Middle: Gene

Title: Deputy Security Manager

Phone # (360) 476-5388

Email: william.g.hixson4.civ@us.navy.mil

Sponsor / POC Information:*

Sponsor Email: william.g.hixson4.civ@us.navy.mil

Last: Hixson

First: William

Title: Security Specialist

Phone # (360) 476-1017

Purpose of Visit:

"Request access to Bldg 954 Annex to provide quote for new covering and removal of existing. POC is Brian Devine Sr at 904-304-7162, Code 430-MHE"

11. PLEASE PROVIDE:

YOUR NAME:

YOUR SAM REGISTERED CAGE CODE NUMBER:

YOUR E-MAIL ADDRESS:

YOUR PHONE NUMBER:

LIST YOUR COMPANY SIZE: LARGE OR SMALL

LEAD TIME/PERIOD OF PERFORMANCE:

YOUR COMPANY MUST BE REGISTERED WITH **SAM** SYSTEM AWARD FOR MANAGEMENT
IN ORDER TO RECEIVE A GOVERNMENT AWARD

THIS IS ALWAYS A FREE SITE TO REGISTER; SEE FOLLOWING LINK: [HTTPS://WWW.SAM.GOV](https://www.sam.gov)

Defense Biometric Identification System (DBIDS) for Vendor Base Access

Vendors requesting base access must go to the following website and register: <http://dbids.dmdc.mil/home>.

Vendors must request for base access as soon as possible after receiving award to ensure that all employees' base access request(s) are approved before the start of the contract's period of performance.

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	MINI-RUBB BLDG ROOF MATERIALS, LABOR, AND FREIGHT PLEASE SEE PWS FOR DETAILS Pricing Arrangement: Firm Fixed Price	1	Job		

Continuation of Description

PERFORMANCE WORK STATEMENT (PWS)

Replacement of RUBB Structure Covering (Skin) - Building 954 Annex, Bremerton, WA 98314

1. GENERAL. This is a non-personal supply procurement to provide all personnel, equipment, tools, materials, supervision, transportation, safety equipment, and other items and services necessary to perform replacement of Bldg. 954 Annex RUBB building waterproof tension fabric covering in Bremerton, WA 98314 as defined in this Performance Work Statement. The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.

1.1 Description of Supply/Introduction. This is a non-personal services procurement. The Contractor shall provide all personnel, materials, equipment, tools, transportation, supervision, safety equipment, and any other resources necessary to replace the Bldg. 954 Annex exterior waterproof tension fabric covering at Fleet Logistics Center Puget Sound (FLCPS), Bremerton, WA 98314, as detailed in this Performance Work Statement. The Government will not supervise or control contractor personnel. These individuals are accountable solely to the Contractor, who is responsible to the Government.

1.2 Background. Fleet Logistics Center Puget Sound is a U.S. Navy logistics installation located in Bremerton, WA. Building 954 Annex, a waterproof tension-fabric RUBB structure, has been worn through age and weather and has sustained damage. It requires professional replacement of the tension fabric covering to restore its security, integrity, and function.

1.3 Objectives. The contractor shall provide all labor, materials, tools, equipment, and supervision necessary to complete the replacement work specified below. All work shall be conducted during normal working hours, Monday through Friday, unless otherwise authorized by the Contracting Officer's Representative (COR).

1.4 Scope. This project includes the inspection, planning, and replacement of the tension fabric covering on the RUBB structure of Building 954 Annex.

1.4.1 The Contractor shall inspect the waterproof tension fabric covering on the RUBB building. A replacement plan must be submitted for approval prior to execution.

1.4.2 The Contractor shall remove and dispose of old waterproof tension fabric covering material and provide and install new materials to replace existing materials.

1.4.3 The Contractor shall ensure all seams, joints, and repairs are watertight, reinforced, and compliant with manufacturer and industry standards.

1.4.4 They must restore the building to a functional, secure, and visually consistent condition.

1.4.5 The Contractor shall safely access elevated areas using appropriate fall protection, lifts, or scaffolding.

1.4.6 Upon completion, the Contractor shall remove all debris, protective coverings, tools, and equipment, and leave the site clean and free of damage.

1.4.7 After completion, all protective coverings shall be removed, and all work areas shall be thoroughly cleaned of dust, debris, and splatters.

1.4.8 All waste and leftover materials shall be disposed of offsite in accordance with local environmental regulations.

2. CLEANING AND PROTECTION.

2.1 The contractor shall Use appropriate coverings (plastic sheeting, tarps, etc.) to shield nearby surfaces and equipment from damage.

2.2 Maintain clean and safe walkways and post signage where work is taking place.

2.3 The contractor shall maintain clean and safe walkways in all occupied or high-traffic areas. Warning

2.4 Remove all debris, excess materials, and waste from the worksite daily. Waste shall not be stored onsite overnight.

2.5 Upon completion, ensure all work areas are cleaned of smudges, debris, or adhesive residue.

3. CONTRACTOR FURNISHED ITEMS AND SERVICES.

3.1 The Contractor shall furnish all necessary materials, tools, ladders, scaffolding, fasteners, adhesives, PPE, and other items required to complete the job. The Contractor shall not rely on any Government furnished supplies unless specified.

3.2 The contractor shall not rely on Government-furnished materials unless otherwise specified.

4. CARPET COMPLETION TIME.

4.1 The requested completion time may not exceed one (1) week from start to finish.

5. GOVERNMENT SERVICES.

5.1 The government will provide water and electricity, when available.

6. QUALITY CONTROL.

6.1 The Contractor shall implement and maintain a quality control program to ensure compliance with all contract requirements and professional standards. All workmanship shall be warranted for five (5) years from the date of final acceptance.

7. HOURS OF OPERATION.

7.1 The contractor shall perform the on-site services required under this contract during the following hours: 7:00 am- 3:30 pm, Monday through Friday, except on U.S. holidays specified below. No onsite work shall be scheduled or performed on holidays unless previously approved or directed by the Contracting Officer. If the contractor desires to work on non-scheduled workdays or evenings, he must submit a written request to the POC for approval.

7.1.1 The contractor is not required to provide service, except as noted above on the following days:

New Year's Day
Martin Luther King, Jr. Birthday
President's Day
Memorial Day
Independence Day
Labor Day
Columbus Day
Veteran's Day
Thanksgiving Day
Christmas Day

8. SECURITY REQUIREMENTS.

8.1 The contractor shall make sure employees have the necessary "Enhanced Real I.D." or "Real I.D. and Proof of Citizenship" and gate passes in accordance with U.S. military installation regulations prior to the start of this contract.

8.2 The contractor shall comply with applicable government published safety requirements and regulations, which will be available upon request by the contractor.

9. CONTRACTOR PERSONNEL REQUIREMENTS.

9.1 The contractor shall provide a project manager who shall be responsible for the performance of the work. The name of this person, and an alternate (s), who shall act for the contractor when the contract manager is absent, shall be designated in writing to the Contracting Officer five (5) working days prior to start of projects. The contract manager or alternate shall have full authority to act for the contractor on all contract matter relating to the daily operation of this contract. The contract manager or alternate shall be available during normal duty hours

9.2 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office. The contracting officer, Government Surveillance Officer (GSO), and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. At these meetings, the contracting officer will apprise the Contractor of how the government views the contractor's performance and the contractor will apprise the Government of any problems that they experience. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the government.

9.2.1 Post award conference to be held one week after award. The contractor will present colors and styles for the offered products for customer selection.

10. CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES.

10.1 The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Section 3 of this PWS.

10.2 The Contractor shall provide all equipment required for floor preparation, installation and cleaning the work areas.

11. SITE VISIT. A site visit will be scheduled in the solicitation, and it is recommended to accurately develop a quote.

Requirements

RUBB ROOF REPLACEMENT

Continuation of Packaging and Marking

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: INFORMATION WILL BE PROVIDED UPON AWARD DoDAAC: N68227 CountryCode: USA DEFENSE FUEL SUPPORT POINT BOX 8, FPO AE 09499-0151 FPO, AE 09499-0151 UNITED STATES WILL BE PROVIDED UPON AWARD, ACTIVITY POC Telephone: WILL BE PROVIDED UPON AWARD
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Continuation of Deliveries or Performance

Overall Contract Delivery Period

Contractor
Destination

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery On Or Before Delivery Date 30 Sep 2026	1 Job	Ship To DoDAAC: N69227 CountryCode: USA NAVSUP FLT LOG CTR KITSAP PUGET SOUND (FISCPS), 467 W STREET BREMERTON, WA 98314-6008 UNITED STATES WILL BE PROVIDED UPON AWARD, ACTIVITY POC Telephone: WILL BE PROVIDED UPON AWARD

Continuation of Accounting and Appropriation Data

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-13	System for Award Management-Maintenance. (Deviation)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation)	Feb 2026		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation)	Feb 2026		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	Feb 2026		
52.222-41	Service Contract Labor Standards. (Deviation)	Feb 2026		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation)	Feb 2026		
52.225-3	Buy American-Free Trade Agreements-Israeli Trade Act. (Deviation)	Feb 2026		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.232-36	Payment by Third Party. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.246-7004	Safety of Facilities, Infrastructure, and Equipment for Military Operations.	Oct 2010		

FAR Clauses Incorporated by Full Text

52.222-42 Statement of Equivalent Rates for Federal Hires.

(May 2014)

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5 332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
<u>23370 General Maintenance Worker, WG 5</u>	<u>\$27.96</u>

Fringe Benefits:

1. Health & Welfare: \$4.98 an hour or \$199.20 a week or \$863.20 a month OR HEALTH & WELFARE:

Life accident and health insurance plans sick leave pension plans civic and personal leave severance pay and savings and thrift plans.
Minimum employer contributions costing an average of \$4.57 per hour computed on the basis of all hours worked up to 40 hours per week by service employees employed on the contract.

1. Vacation: 2 weeks paid vacation after 1 year of service with contractor or successor; 3 weeks after 5 years and 4 weeks after 15 years. Length of service includes the whole span of continuous service with

the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

2. Holidays: A minimum of ten paid holidays per year - New Year's Day, Martin Luther King Jr's Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4174)

*Please note that these are for reference purposes only.

"REGISTER OF WAGE DETERMINATIONS UNDER | U.S. DEPARTMENT OF LABOR THE SERVICE CONTRACT ACT | EMPLOYMENT STANDARDS ADMINISTRATION By direction of the Secretary of Labor | WAGE AND HOUR DIVISION | WASHINGTON D.C. 20210 ||| Wage Determination No.: 2015-5525 Daniel W. Simms Division of | Revision No.: 28 Director Wage Determinations | Date Of Last Revision: 07/08 /2025

Note: Contracts subject to the Service Contract Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658.

_____ If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., if an option is exercised) on or after January 30, 2022, the contractor must pay all covered workers at least \$17.75 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.

_____ If the contract was awarded on or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.

The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under the Executive Orders is available at www.dol.gov/whd/govcontracts.

State: Washington

Area: Washington County of Kitsap

Fringe Benefits Required Follow the Occupational Listing

OCCUPATION CODE - TITLE FOOTNOTE RATE

01000 - Administrative Support And Clerical Occupations
01011 - Accounting Clerk I 21.87
01012 - Accounting Clerk II 24.54
01013 - Accounting Clerk III 27.46
01020 - Administrative Assistant 36.32
01035 - Court Reporter 24.43
01041 - Customer Service Representative I 17.74***
01042 - Customer Service Representative II 19.35
01043 - Customer Service Representative III 21.74
01051 - Data Entry Operator I 17.83
01052 - Data Entry Operator II 19.46
01060 - Dispatcher, Motor Vehicle 27.85
01070 - Document Preparation Clerk 19.46
01090 - Duplicating Machine Operator 19.46
01111 - General Clerk I 18.96
01112 - General Clerk II 20.70
01113 - General Clerk III 23.23
01120 - Housing Referral Assistant 27.23
01141 - Messenger Courier 15.97***
01191 - Order Clerk I 17.83
01192 - Order Clerk II 19.46
01261 - Personnel Assistant (Employment) I 20.42
01262 - Personnel Assistant (Employment) II 22.84
01263 - Personnel Assistant (Employment) III 25.47
01270 - Production Control Clerk 35.75
01290 - Rental Clerk 20.19
01300 - Scheduler, Maintenance 21.84
01311 - Secretary I 21.84
01312 - Secretary II 24.43
01313 - Secretary III 27.23
01320 - Service Order Dispatcher 24.90
01410 - Supply Technician 36.32
01420 - Survey Worker 24.43
01460 - Switchboard Operator/Receptionist 20.24

01531 - Travel Clerk I 19.46
 01532 - Travel Clerk II 21.84
 01533 - Travel Clerk III 24.43
 01611 - Word Processor I 19.46
 01612 - Word Processor II 21.84
 01613 - Word Processor III 24.43
 05000 - Automotive Service Occupations
 05005 - Automobile Body Repairer, Fiberglass 27.82
 05010 - Automotive Electrician 25.57
 05040 - Automotive Glass Installer 24.48
 05070 - Automotive Worker 24.48
 05110 - Mobile Equipment Servicer 21.84
 05130 - Motor Equipment Metal Mechanic 26.45
 05160 - Motor Equipment Metal Worker 24.48
 05190 - Motor Vehicle Mechanic 26.45
 05220 - Motor Vehicle Mechanic Helper 20.53
 05250 - Motor Vehicle Upholstery Worker 23.17
 05280 - Motor Vehicle Wrecker 24.48
 05310 - Painter, Automotive 25.57
 05340 - Radiator Repair Specialist 24.48
 05370 - Tire Repairer 18.57
 05400 - Transmission Repair Specialist 26.45
 07000 - Food Preparation And Service Occupations
 07010 - Baker 19.77
 07041 - Cook I 23.08
 07042 - Cook II 25.86
 07070 - Dishwasher 17.45***
 07130 - Food Service Worker 18.70
 07210 - Meat Cutter 26.53
 07260 - Waiter/Waitress 20.83
 09000 - Furniture Maintenance And Repair Occupations
 09010 - Electrostatic Spray Painter 28.65
 09040 - Furniture Handler 20.05
 09080 - Furniture Refinisher 28.65
 09090 - Furniture Refinisher Helper 23.01
 09110 - Furniture Repairer, Minor 25.97
 09130 - Upholsterer 28.65
 11000 - General Services And Support Occupations
 11030 - Cleaner, Vehicles 17.89
 11060 - Elevator Operator 21.52
 11090 - Gardener 26.46
 11122 - Housekeeping Aide 21.52
 11150 - Janitor 21.52
 11210 - Laborer, Grounds Maintenance 21.68
 11240 - Maid or Houseman 18.11
 11260 - Pruner 20.07
 11270 - Tractor Operator 24.87
 11330 - Trail Maintenance Worker 21.68
 11360 - Window Cleaner 23.25
 12000 - Health Occupations
 12010 - Ambulance Driver 34.33
 12011 - Breath Alcohol Technician 34.33
 12012 - Certified Occupational Therapist Assistant 46.11
 12015 - Certified Physical Therapist Assistant 33.17
 12020 - Dental Assistant 25.34
 12025 - Dental Hygienist 61.59
 12030 - EKG Technician 50.93
 12035 - Electroneurodiagnostic Technologist 50.93
 12040 - Emergency Medical Technician 34.33
 12071 - Licensed Practical Nurse I 30.04
 12072 - Licensed Practical Nurse II 33.61
 12073 - Licensed Practical Nurse III 37.47
 12100 - Medical Assistant 23.78
 12130 - Medical Laboratory Technician 30.18
 12160 - Medical Record Clerk 23.12
 12190 - Medical Record Technician 25.86
 12195 - Medical Transcriptionist 30.04
 12210 - Nuclear Medicine Technologist 73.85
 12221 - Nursing Assistant I 16.54***
 12222 - Nursing Assistant II 18.60
 12223 - Nursing Assistant III 20.28
 12224 - Nursing Assistant IV 22.78

12235 - Optical Dispenser 23.71
 12236 - Optical Technician 30.04
 12250 - Pharmacy Technician 24.85
 12280 - Phlebotomist 30.04
 12305 - Radiologic Technologist 42.06
 12311 - Registered Nurse I 29.46
 12312 - Registered Nurse II 36.05
 12313 - Registered Nurse II, Specialist 36.05
 12314 - Registered Nurse III 43.61
 12315 - Registered Nurse III, Anesthetist 43.61
 12316 - Registered Nurse IV 52.28
 12317 - Scheduler (Drug and Alcohol Testing) 42.52
 12320 - Substance Abuse Treatment Counselor 27.40
 13000 - Information And Arts Occupations
 13011 - Exhibits Specialist I 34.31
 13012 - Exhibits Specialist II 42.50
 13013 - Exhibits Specialist III 51.97
 13041 - Illustrator I 34.31
 13042 - Illustrator II 42.50
 13043 - Illustrator III 51.97
 13047 - Librarian 47.07
 13050 - Library Aide/Clerk 22.06
 13054 - Library Information Technology Systems 42.50
 Administrator
 13058 - Library Technician 25.30
 13061 - Media Specialist I 30.67
 13062 - Media Specialist II 34.31
 13063 - Media Specialist III 38.24
 13071 - Photographer I 30.67
 13072 - Photographer II 34.31
 13073 - Photographer III 42.50
 13074 - Photographer IV 51.97
 13075 - Photographer V 62.88
 13090 - Technical Order Library Clerk 27.70
 13110 - Video Teleconference Technician 30.67
 14000 - Information Technology Occupations
 14041 - Computer Operator I 23.15
 14042 - Computer Operator II 25.90
 14043 - Computer Operator III 28.87
 14044 - Computer Operator IV 32.09
 14045 - Computer Operator V 35.53
 14071 - Computer Programmer I (see 1) 24.47
 14072 - Computer Programmer II (see 1)
 14073 - Computer Programmer III (see 1)
 14074 - Computer Programmer IV (see 1)
 14101 - Computer Systems Analyst I (see 1)
 14102 - Computer Systems Analyst II (see 1)
 14103 - Computer Systems Analyst III (see 1)
 14150 - Peripheral Equipment Operator 23.15
 14160 - Personal Computer Support Technician 32.09
 14170 - System Support Specialist 35.53
 15000 - Instructional Occupations
 15010 - Aircrew Training Devices Instructor (Non-Rated) 41.72
 15020 - Aircrew Training Devices Instructor (Rated) 50.38
 15030 - Air Crew Training Devices Instructor (Pilot) 60.49
 15050 - Computer Based Training Specialist / Instructor 41.72
 15060 - Educational Technologist 41.87
 15070 - Flight Instructor (Pilot) 60.49
 15080 - Graphic Artist 33.54
 15085 - Maintenance Test Pilot, Fixed, Jet/Prop 60.49
 15086 - Maintenance Test Pilot, Rotary Wing 60.49
 15088 - Non-Maintenance Test/Co-Pilot 60.49
 15090 - Technical Instructor 31.45
 15095 - Technical Instructor/Course Developer 38.46
 15110 - Test Proctor 25.39
 15120 - Tutor 25.39
 16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations
 16010 - Assembler 19.15
 16030 - Counter Attendant 19.15
 16040 - Dry Cleaner 21.88
 16070 - Finisher, Flatwork, Machine 19.15
 16090 - Presser, Hand 19.15

16110 - Presser, Machine, Drycleaning 19.15
 16130 - Presser, Machine, Shirts 19.15
 16160 - Presser, Machine, Wearing Apparel, Laundry 19.15
 16190 - Sewing Machine Operator 22.79
 16220 - Tailor 23.70
 16250 - Washer, Machine 20.06
 19000 - Machine Tool Operation And Repair Occupations
 19010 - Machine-Tool Operator (Tool Room) 35.05
 19040 - Tool And Die Maker 39.70
 21000 - Materials Handling And Packing Occupations
 21020 - Forklift Operator 28.12
 21030 - Material Coordinator 35.75
 21040 - Material Expediter 35.75
 21050 - Material Handling Laborer 20.96
 21071 - Order Filler 19.41
 21080 - Production Line Worker (Food Processing) 28.12
 21110 - Shipping Packer 24.40
 21130 - Shipping/Receiving Clerk 24.40
 21140 - Store Worker I 21.63
 21150 - Stock Clerk 26.99
 21210 - Tools And Parts Attendant 28.12
 21410 - Warehouse Specialist 28.12
 23000 - Mechanics And Maintenance And Repair Occupations
 23010 - Aerospace Structural Welder 37.43
 23019 - Aircraft Logs and Records Technician 31.77
 23021 - Aircraft Mechanic I 36.26
 23022 - Aircraft Mechanic II 37.43
 23023 - Aircraft Mechanic III 38.53
 23040 - Aircraft Mechanic Helper 28.15
 23050 - Aircraft, Painter 35.05
 23060 - Aircraft Servicer 31.77
 23070 - Aircraft Survival Flight Equipment Technician 35.05
 23080 - Aircraft Worker 33.56
 23091 - Aircrew Life Support Equipment (ALSE) Mechanic 33.56
 I
 23092 - Aircrew Life Support Equipment (ALSE) Mechanic 36.26
 II
 23110 - Appliance Mechanic 35.05
 23120 - Bicycle Repairer 29.95
 23125 - Cable Splicer 42.71
 23130 - Carpenter, Maintenance 31.35
 23140 - Carpet Layer 33.56
 23160 - Electrician, Maintenance 36.42
 23181 - Electronics Technician Maintenance I 36.22
 23182 - Electronics Technician Maintenance II 37.83
 23183 - Electronics Technician Maintenance III 39.14
 23260 - Fabric Worker 31.77
 23290 - Fire Alarm System Mechanic 36.26
 23310 - Fire Extinguisher Repairer 29.95
 23311 - Fuel Distribution System Mechanic 36.26
 23312 - Fuel Distribution System Operator 29.95
 23370 - General Maintenance Worker 27.51
 23380 - Ground Support Equipment Mechanic 36.26
 23381 - Ground Support Equipment Servicer 31.77
 23382 - Ground Support Equipment Worker 33.56
 23391 - Gunsmith I 29.95
 23392 - Gunsmith II 33.56
 23393 - Gunsmith III 36.26
 23410 - Heating, Ventilation And Air-Conditioning 32.38
 Mechanic
 23411 - Heating, Ventilation And Air Contidioning 33.43
 Mechanic (Research Facility)
 23430 - Heavy Equipment Mechanic 35.07
 23440 - Heavy Equipment Operator 35.77
 23460 - Instrument Mechanic 36.26
 23465 - Laboratory/Shelter Mechanic 35.05
 23470 - Laborer 20.96
 23510 - Locksmith 35.05
 23530 - Machinery Maintenance Mechanic 40.76
 23550 - Machinist, Maintenance 37.78
 23580 - Maintenance Trades Helper 28.15
 23591 - Metrology Technician I 36.26

23592 - Metrology Technician II 37.43
 23593 - Metrology Technician III 38.53
 23640 - Millwright 36.26
 23710 - Office Appliance Repairer 34.99
 23760 - Painter, Maintenance 29.57
 23790 - Pipefitter, Maintenance 37.68
 23810 - Plumber, Maintenance 36.42
 23820 - Pneudraulic Systems Mechanic 36.26
 23850 - Rigger 36.42
 23870 - Scale Mechanic 33.56
 23890 - Sheet-Metal Worker, Maintenance 36.91
 23910 - Small Engine Mechanic 33.56
 23931 - Telecommunications Mechanic I 35.30
 23932 - Telecommunications Mechanic II 36.44
 23950 - Telephone Lineman 36.26
 23960 - Welder, Combination, Maintenance 33.24
 23965 - Well Driller 36.26
 23970 - Woodcraft Worker 36.26
 23980 - Woodworker 29.95
 24000 - Personal Needs Occupations
 24550 - Case Manager 22.34
 24570 - Child Care Attendant 17.29***
 24580 - Child Care Center Clerk 21.57
 24610 - Chore Aide 19.72
 24620 - Family Readiness And Support Services 22.34
 Coordinator
 24630 - Homemaker 22.34
 25000 - Plant And System Operations Occupations
 25010 - Boiler Tender 38.11
 25040 - Sewage Plant Operator 36.84
 25070 - Stationary Engineer 38.11
 25190 - Ventilation Equipment Tender 29.58
 25210 - Water Treatment Plant Operator 36.84
 27000 - Protective Service Occupations
 27004 - Alarm Monitor 32.69
 27007 - Baggage Inspector 20.32
 27008 - Corrections Officer 38.48
 27010 - Court Security Officer 42.75
 27030 - Detection Dog Handler 24.79
 27040 - Detention Officer 38.48
 27070 - Firefighter 48.09
 27101 - Guard I 20.32
 27102 - Guard II 24.79
 27131 - Police Officer I 44.39
 27132 - Police Officer II 49.34
 28000 - Recreation Occupations
 28041 - Carnival Equipment Operator 21.18
 28042 - Carnival Equipment Repairer 22.53
 28043 - Carnival Worker 17.08***
 28210 - Gate Attendant/Gate Tender 24.06
 28310 - Lifeguard 21.44
 28350 - Park Attendant (Aide) 26.91
 28510 - Recreation Aide/Health Facility Attendant 19.65
 28515 - Recreation Specialist 33.34
 28630 - Sports Official 21.44
 28690 - Swimming Pool Operator 25.25
 29000 - Stevedoring/Longshoremen Occupational Services
 29010 - Blocker And Bracer 33.56
 29020 - Hatch Tender 33.56
 29030 - Line Handler 33.56
 29041 - Stevedore I 31.77
 29042 - Stevedore II 35.05
 30000 - Technical Occupations
 30010 - Air Traffic Control Specialist, Center (HFO) (see 2) 51.79
 30011 - Air Traffic Control Specialist, Station (HFO) (see 2) 35.71
 30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2) 39.32
 30021 - Archeological Technician I 23.71
 30022 - Archeological Technician II 26.52
 30023 - Archeological Technician III 32.85
 30030 - Cartographic Technician 32.85
 30040 - Civil Engineering Technician 39.15
 30051 - Cryogenic Technician I 35.66

30052 - Cryogenic Technician II 39.40
 30061 - Drafter/CAD Operator I 23.71
 30062 - Drafter/CAD Operator II 26.52
 30063 - Drafter/CAD Operator III 29.56
 30064 - Drafter/CAD Operator IV 36.39
 30081 - Engineering Technician I 20.79
 30082 - Engineering Technician II 23.34
 30083 - Engineering Technician III 26.11
 30084 - Engineering Technician IV 32.34
 30085 - Engineering Technician V 39.55
 30086 - Engineering Technician VI 47.85
 30090 - Environmental Technician 32.85
 30095 - Evidence Control Specialist 32.20
 30210 - Laboratory Technician 29.56
 30221 - Latent Fingerprint Technician I 35.66
 30222 - Latent Fingerprint Technician II 39.40
 30240 - Mathematical Technician 32.85
 30361 - Paralegal/Legal Assistant I 24.68
 30362 - Paralegal/Legal Assistant II 30.58
 30363 - Paralegal/Legal Assistant III 37.41
 30364 - Paralegal/Legal Assistant IV 45.25
 30375 - Petroleum Supply Specialist 39.40
 30390 - Photo-Optics Technician 32.85
 30395 - Radiation Control Technician 39.40
 30461 - Technical Writer I 32.85
 30462 - Technical Writer II 40.18
 30463 - Technical Writer III 48.61
 30491 - Unexploded Ordnance (UXO) Technician I 32.91
 30492 - Unexploded Ordnance (UXO) Technician II 39.82
 30493 - Unexploded Ordnance (UXO) Technician III 47.73
 30494 - Unexploded (UXO) Safety Escort 32.91
 30495 - Unexploded (UXO) Sweep Personnel 32.91
 30501 - Weather Forecaster I 35.66
 30502 - Weather Forecaster II 43.38
 30620 - Weather Observer, Combined Upper Air Or (see 2) 29.03
 Surface Programs
 30621 - Weather Observer, Senior (see 2) 32.20
 31000 - Transportation/Mobile Equipment Operation Occupations
 31010 - Airplane Pilot 39.82
 31020 - Bus Aide 23.68
 31030 - Bus Driver 30.66
 31043 - Driver Courier 20.88
 31260 - Parking and Lot Attendant 17.87
 31290 - Shuttle Bus Driver 23.26
 31310 - Taxi Driver 20.90
 31361 - Truckdriver, Light 22.21
 31362 - Truckdriver, Medium 23.56
 31363 - Truckdriver, Heavy 30.06
 31364 - Truckdriver, Tractor-Trailer 30.06
 99000 - Miscellaneous Occupations
 99020 - Cabin Safety Specialist 19.41
 99030 - Cashier 17.83
 99050 - Desk Clerk 18.27
 99095 - Embalmer 32.91
 99130 - Flight Follower 32.91
 99251 - Laboratory Animal Caretaker I 19.02
 99252 - Laboratory Animal Caretaker II 20.23
 99260 - Marketing Analyst 35.01
 99310 - Mortician 32.91
 99410 - Pest Controller 27.93
 99510 - Photofinishing Worker 17.30***
 99710 - Recycling Laborer 25.13
 99711 - Recycling Specialist 28.83
 99730 - Refuse Collector 23.26
 99810 - Sales Clerk 17.98
 99820 - School Crossing Guard 23.65
 99830 - Survey Party Chief 42.56
 99831 - Surveying Aide 20.16
 99832 - Surveying Technician 30.43
 99840 - Vending Machine Attendant 28.83
 99841 - Vending Machine Repairer 34.37
 99842 - Vending Machine Repairer Helper 28.83

***Workers in this classification may be entitled to a higher minimum wage under Executive Order 14026 (\$17.75 per hour) or 13658 (\$13.30 per hour). Please see the Note at the top of the wage determination for more information. Please also note that the minimum wage requirements of Executive Order 14026 and 13658 are not currently being enforced as to contracts or contract-like instruments entered into with the federal government in connection with seasonal recreational services or seasonal recreational equipment rental for the general public on federal lands. The minimum wage requirements of Executive Order 14026 also are not currently being enforced as to any contract or subcontract to which the states of Texas, Louisiana, or Mississippi, including their agencies, are a party.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA- covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

- (1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;
- (2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;
- (3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or
- (4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

** HAZARDOUS PAY DIFFERENTIAL **

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close

proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder. All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of "wash and wear" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the "Service Contract Act Directory of Occupations", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).
- 4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.
- 5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.
- 6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the "Service Contract Act Directory of Occupations" should be used to compare job definitions to ensure

that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))."

(End of clause)

52.223-11 Ozone-Depleting Substances. (Deviation)

(Feb 2026)

OZONE-DEPLETING SUBSTANCES (FEB 2026) (DEVIATION)

(a) *Definition.* As used in this clause-

Ozone-depleting substance means any substance the Environmental Protection Agency designates in 40 CFR part 82 as-

- (1) Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or
- (2) Class II, including, but not limited to, hydrochlorofluorocarbons.

(b) *Requirement.* In accordance with 40 CFR 82.84(a)(5), the Contractor shall label products that contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C. 7671j(b), (c), (d), and (e) and 40 CFR part 82, subpart E, as follows:

Warning: Contains (or manufactured with, if applicable) * ____, a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.

* The Contractor shall insert the name of the substance(s).

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	Feb 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation)	Feb 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation)	Feb 2026		
52.203-17	Contractor Employee Whistleblower Rights.	Nov 2023		
52.225-3	Buy American-Free Trade Agreements-Israeli Trade Act. (Deviation) (Alternate II)	Feb 2026	Alternate II	Feb 2026
52.240-93	Basic Safeguarding of Covered Contractor Information Systems. (Deviation)	Feb 2026		

List of Contract Documents, Exhibits, or Attachments

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

Evaluation - Commercial Products and Commercial Services

Addendum to Evaluation - Commercial Product and Commercial Services

Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation)	Feb 2026		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	Feb 2026		

FAR Clauses Incorporated by Full Text

52.225-4	Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Deviation)	(Feb 2026)
BUY AMERICAN-FREE TRADE AGREEMENTS-ISRAELI TRADE ACT CERTIFICATE (FEB 2026) (DEVIATION)		

- (a)
- (1) The Offeror certifies that each end product, except those listed in paragraph (b) or (c)(1) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(2) of this provision contains a critical component.
- (2) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."
- (b) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line item No.	Country of origin
_____	_____
==	==
==	==

--	--

[List as necessary]

(c)

(1) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (b) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." Other Foreign End Products:

Line Item No.	Country of origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(2) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(d) The Government will evaluate offers in accordance with the policies and procedures of part 25 of the Federal Acquisition Regulation.

(End of provision)

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation.

(Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)